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Complaint targets uOttawa for failure to defend confidentiality

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Criminologist Ted Palys says in a complaint filed with the Secretariat on Responsible Conduct of Research that the University of Ottawa breached agency policies in refusing to assist researchers. A leading Canadian criminologist has filed a complaint against the University of Ottawa for failing to fulfill its obligation to uphold federal granting council research policies.

In a letter to the federal Secretariat on Responsible Conduct of Research, Simon Fraser University criminologist Ted Palys said the University of Ottawa failed to help two of its faculty protect the confidentiality of their research records, a principle enshrined in the Tri-Council Policy Statement: Ethical Conduct for Research Involving Humans (TCPS 2).

Article 5.1 of the policy statement states that “institutions shall support their researchers in maintaining promises of confidentiality.”

It further states that “breaches of confidentiality may harm the participant, the trust relationship between the researcher and the participant, other individuals or groups, and/or the reputation of the research community. Research that probes sensitive topics (e.g., illegal activities) generally depends on strong promises of confidentiality to establish trust with participants.”

As penalty for violating obligations under the policy, an institution can be declared ineligible to continue receiving funds from the granting agencies.

Palys’ complaint arises from a challenge to confidentiality initiated by Montreal police in relation to the murder trial of Luka Rocco Magnotta. The police served a search warrant for the transcript and text of an interview conducted in 2007 in a study of escort service prostitution by University of Ottawa criminologists Christine Bruckert and Colette Parent — notably an interview with an escort using “Jimmy” as a pseudonym, who police say is Magnotta.

Bruckert and Parent have filed motions before Quebec Superior Court to prevent the release of their confidential records. The University of Ottawa has refused to assist them.

“The University of Ottawa has failed to meet its obligations under TCPS 2, and thereby has breached its obligations under its agreement with the granting agencies,” said Palys in his letter to the secretariat. “At issue is whether TCPS 2 actually means anything and has any regulatory teeth, or does it regulate researchers while allowing university administrations to do whatever they please?”

Palys is asking that the university be required to apologize to the researchers for failing to support their principled defense of research confidentiality; to reimburse the cost of their legal defense of research confidentiality; and to establish policies for the legal indemnification of faculty and graduate students who might be faced with similar threats to research confidentiality in future.

Related:

- [uOttawa criminologists go to court to protect research confidentiality](#)
- [REB members deplore UOttawa's refusal to defend confidentiality.](#)